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McKinnon

Mr Jerome Laxale MP
Chair
Joint Standing Committee on Electoral Matters

Via: email

27 October 2025

Dear Chair

RE: MCKINNON SUBMISSION TO JOINT STANDING COMMITTEE ON ELECTORAL MATTERS *INQUIRY INTO THE 2025 FEDERAL ELECTION*

McKinnon thanks you for the opportunity to make a submission to the Joint Standing Committee on Electoral Matters (Committee) *Inquiry into the 2025 federal election* (Inquiry), and we commend the Committee for its interest in electoral administration and Australia's electoral system.

McKinnon is committed to strengthening the operation and effectiveness of democratic government in Australia, and its focus areas including improving public sector integrity, transparency, accountability, and electoral systems.

This submission:

- provides an overview of McKinnon
- outlines previous McKinnon work in relation to:
  - civics education
  - 'truth in political advertising' laws
  - a report that included consideration of issues relating to fixed three-year parliamentary terms for the Federal Parliament; and
- notes current and upcoming McKinnon work in relation to:
  - the McKinnon Index
  - reports on misinformation/disinformation at the 2025 Federal Election; and
  - McKinnon's Democracy Foundational Research Project.

Overview of McKinnon

McKinnon was founded in 2015 by Dr Sophie Oh and Grant Rule, with the aim of strengthening Australia's democracy. McKinnon believes that better governments are the key to a stronger Australia. The quality of leadership and democracy has never mattered more, which is why McKinnon works to develop political leadership, strengthen institutions and solve the most pressing policy issues to create lasting outcomes that benefit all Australians.

McKinnon's work is focused on four key areas:

- strong and trusted democratic institutions that foster cohesion, constructive debate, and informed public participation in democratic processes
- exceptional political leadership, as positive leadership is crucial in a high-functioning democracy
- world leading policy, supporting innovative solutions to Australia's biggest problems such as education reform through leading pilot programmes; and
- a high performing public sector, with the right capabilities and institutions to produce high quality service delivery, evidenced based policymaking and long-term thinking.

McKinnon incubates, delivers and supports practical improvements that deliver tangible progress to the operation of government and supports initiatives including:

- the McKinnon Prize in Political Leadership, in partnership with the University of Melbourne, was established to recognise political leaders at all levels of government who have driven positive impact through their vision, collaboration, courage and ethical behaviour
- the McKinnon Institute for Political Leadership, a non-partisan, not-for-profit organisation, in partnership with Monash University, provides outstanding professional development for members of Australia's federal, state and territory parliaments
- the Australian Policy Online (APO), which curates and archives a free online library of articles, research reports, evaluations, policy briefs and white papers to help organisations including government, non-for-profits and think tanks access timely and reliable information on public policy; and
- e61, a not-for-profit, non-partisan economic research institute that analyses big data to help answer Australia's most pressing economic policy questions.

McKinnon is non-partisan and motivated only by the public interest.

For further information please visit our website: www.mckinnon.co.

Previous McKinnon work

Civics education

Since 2023, McKinnon has undertaken exploratory research and engagement focused on strengthening young people's civic participation, with the aim of ensuring younger generations are well informed and active in our democracy and communities.

This work informed our 2024 submission to JSCEM's Inquiry into civics education, engagement and participation in Australia (submission 49, which is available here). Our submission identified areas for action which were supported in the recommendations of JSCEM's report, From Classroom to Community Civics education and political participation in Australia, including assessing implementation of the civics and citizenship curriculum by jurisdiction, developing additional professional development resources for teachers to deliver civics education, expanding civics education to senior years of school to support students as they move to voting age, and taking a holistic approach to civic engagement and trust in institutions, including strengthening media and digital literacy and public interest journalism.

With the support of McKinnon, Correa Consulting (led by founding Chief Executive of the Grattan Institute John Daley) undertook the *Institutional Stocktake Report* to consider and assess a series of reforms relating to Australia's democratic institutions. The report recommended:

- Specifying minimum number of teaching hours for civics in years 9 and 10, and mandate a civics course for years 11 and 12
- Developing and disseminating high quality teacher professional development resources for civics teaching
- Setting up a national research centre to promote effective civics education by rigorously researching which interventions are most effective, and disseminating best practice
- Further research to design better civics education for adults.

The *Institutional Stocktake Report* is available here.

In addition, McKinnon's current research on public perceptions and attitudes to Australian democracy (see below) indicated that 85% of respondents thought that there should be more education around Australia's preferential voting and political system, with 15% of respondents being opposed.

'Truth in political advertising' laws

With the support of McKinnon, Associate Professor Yee-Fui Ng examined the effect, operation, and administration of 'truth in political advertising' laws.

Associate Professor Ng's final report is based on 34 interviews with various stakeholders involved in 'truth in political advertising' laws (such as current and former premiers, ministers, MPs, electoral commissioners,

political party directors/secretaries, and civil society groups) and were concentrated in South Australia, but also includes interviewees from NSW, Victoria, and the Australian Capital Territory.

The final report made a series of findings about the design, operation, and effectiveness of existing 'truth in political advertising' laws in South Australia and the Australian Capital Territory, including that:

- most political actors in South Australia support their 'truth in political advertising' laws, and 'truth in political advertising' laws in South Australia have not had a 'chilling' effect on freedom of speech
- there was a high level of compliance with the South Australian Electoral Commissioner's determinations in relation to 'truth in political advertising' laws, and that the South Australian Electoral Commission's reputation for impartiality has not been affected by its administration of 'truth in political advertising' laws
- South Australia's 'truth in political advertising' laws may need to be updated to address contemporary issues such as artificial intelligence and deepfakes.

The final report also made 25 recommendations about the design, operation, and effectiveness of 'truth in political advertising' laws, including that:

- 'truth in political advertising' laws should focus on false and misleading statements of fact, and not extend to opinions or predictions
- 'truth in political advertising' laws should apply broadly to all forms of political advertising (including social media, streaming services, bulk text messages, and robocalls), and should apply to media generated by artificial intelligence; and
- there should be education and training to support awareness and understanding of 'truth in political advertising' laws.

The final report considered appropriate enforcement mechanisms, and recommended various sanctions and remedies, including the loss of public funding to political parties for breaches of 'truth in political advertising' laws.

The final report and interview summaries are available here.

McKinnon notes that:

- the Federal Government introduced the Electoral Legislation Amendment (Electoral Communications) Bill 2024 (Cth) into Parliament in November 2024, which aimed to acquit previous recommendations from JSCEM arising from its *Inquiry into the 2022 federal election* which recommended that the Federal Government develop federal 'truth in political advertising' legislation
- the Bill was not enacted prior to the 2025 Federal Election.

To support better quality political discourse and political communication and information in electoral campaigns, McKinnon recommends that the Federal Government reintroduce a bill to implement federal 'truth in political advertising' laws, with consideration given to the findings and recommendations in Associate Professor Ng's report to ensure that the bill is fit-for-purpose and addresses contemporary issues relating to political advertising, discourse, and communication.

Fixed parliamentary terms

The Inquiry's terms of reference notes that the Special Minister of State asked JSCEM to consider issues relating to the composition of the Federal Parliament, including the length of the parliamentary term and the potential for fixed terms.

With the support of McKinnon, Correa Consulting (led by founding Chief Executive of the Grattan Institute John Daley) undertook the *Institutional Stocktake Report* to consider and assess a series of reforms to Australia's democratic institutions. The report recommended further consideration of implementing fixed three-year parliamentary terms for the Federal Parliament, including legal and constitutional research and analysis. The *Institutional Stocktake Report* is available here.

Current and upcoming McKinnon work

McKinnon is currently progressing several projects that may be of interest to the Committee's Inquiry:

- the McKinnon Index - Australia's annual dashboard of democratic health. It measures trust in leaders, effectiveness of governments, performance of our institutions, and how and why Australians engage in politics and public debate.
- reports on misinformation / disinformation in relation to the 2025 Federal Election; and
- research on Australian democracy that will inform a Democratic Renewal Campaign.

Further information about these projects is below, and McKinnon can provide the final products of these projects to the Committee once they have been completed.

McKinnon Index

McKinnon will shortly be releasing the first McKinnon Index, an annual dashboard of democratic health made up of a collection of measures that track the health and effectiveness of our governments and democracy over time, at both the State and Federal level. The Index is made up of a series of measures, mostly derived from a public opinion survey but also including data from existing sources such as the AEC or ABS, to understand high-level system health indicators across three core areas: trust in government, government effectiveness and democratic health. Within each of these themes, we track leading indicators that evidence suggests drive performance in each area.

Some areas of the Index may be of interest to this Committee, such as measures related to people's confidence in election outcomes, their trust in, and satisfaction with, electoral commissions, and their views overall with Australia's democracy. The Index also includes measures around how informed and engaged citizens are, including their main reasons for voting, and how represented they feel by their elected representatives.

The full McKinnon Index report and accompanying data will be released in November 2025, however we can provide the Committee with early insights into measures of interest if requested.

Misinformation / disinformation in relation to the 2025 Federal Election

We commissioned three projects to monitor for misinformation across multiple platforms and mediums during the 2025 Federal Election:

1. *Crowdsourced monitoring project:* We commissioned Melbourne University's Hunt Lab to utilise teams of volunteers to look across the major social media platforms to catalogue electoral misinformation as well as other problematic content such as intimidation of candidates, posts undermining the integrity of the AEC or election.
2. *Chinese language monitoring project:* We commissioned academics from Melbourn Uni who already monitor WeChat for misinformation to scale up their efforts during the federal election and expand to cover other platforms like Red.
3. *Australian Ad Observatory political ad monitoring project:* The Australian Ad Observatory (AAO) use an online browser extension that people can download to catalogue all the paid social media ads they see in order to check whether what platforms report as being shown to people is accurate. A representative sample of Australians in marginal electorates was recruited to catalogue political ads they saw to find any cases of misinformation as well as check if platforms transparency reporting on political ads is accurate.

The aim of these projects was to better understand the nature of online electoral misinformation in Australia, and test whether real-time monitoring could support agencies to better respond to it. We will release a report with detailed findings in December 2025, but data indicates that people encountered misinformation online during the Federal Election daily, particularly casting doubt about the result or questioning the integrity of the Australian Electoral Commission in the two weeks after the Election. We also detected cases of suspected astroturfing and unauthorised political ads, and the AAO have submitted their findings to the Select Committee

on Information Integrity on Climate Change and Energy and were invited to speak to their submission on 29 September 2025.

Current McKinnon research on Australian democracy

McKinnon has commissioned research into public perceptions of democracy in Australia, including democratic institutions, systems, actors, and norms. The research has included focus groups and polling and has covered a number of topics that may be of interest to the Committee. The research has not yet been released, but a summary of key findings is set out below.

Focus groups

The findings of the focus groups indicate that:

- Australians are mostly positive and optimistic about Australian democracy
  - Having a fair electoral process and enabling citizens to have a choice in the country's leadership are the most common aspects of democracy
  - Democracy is viewed as a key component of what makes Australia a thriving and prosperous country
  - The COVID-19 response and same-sex marriage postal vote are viewed as recent triumphs of Australian democracy
  - Compulsory voting ensure that the views of the majority are captured and reflected in government
  - Social services, a representative government and freedom are often referenced as positive outcomes of democracy. Most are grateful that democracy has enabled services such as Medicare, HECS and Centrelink.
  - Many identify that Australia is more democratic compared to other countries
  - While some point out that minority groups might not have the same opportunities and experiences as regular Australians, they are broadly optimistic about the future of Australian democracy but consider that there is room for improvement
- Australians are less trusting of politicians
  - Many expressed concerns that politicians do not reflect everyday Australians, lack perspective on their views, are self-interested and neglect long-term policies
  - These frustrations are compounded by the sense that politicians often make election promises that they do not keep and that there is little accountability for these practices
  - Some viewed independent MPs as the exception to these concerns
- Australian elections are viewed as largely free and fair, with adequate access and transparency in the voting process, but there is dissatisfaction with election campaign tactics
  - Many people disliked the ability to send unsolicited political text messages
  - People also expressed concern that campaign messaging contains misinformation and that it can be difficult to determine the truth in what parties say about their policies and their opposition
  - Many people expressed frustration with the overuse of negative messaging as a tactic, preferring that political parties focus their efforts on discussing their achievements and plans
- There is support for a range of democratic reforms that help to improve transparency, accountability and public involvement
  - Many highly support reform measures that centre on election campaigning to improve fairness and transparency in the election process
  - Strongly supported measures include legislating 'truth in political advertising' laws, real-time disclosure of political donations, restricting public funds for negative political advertising, and capping political donations
  - Additionally, the idea of citizen juries appeals as they enable everyday voices to be heard in policy decisions, which gives citizens more power and allows underrepresented voices to be heard.

Polling

The polling results indicate that:

- Participants broadly support Australia's current electoral system
  - 66% of respondents supported compulsory voting in Australia, with 18% of respondents being opposed, and 15% of respondents neither supporting or opposing it
  - 72% of respondents supported the independent role of the AEC in delivering elections, with 6% of respondents being opposed, and 22% of respondents being neither supportive or opposed.
  - 49% of respondents supported Australian's preferential voting system, with 26% being opposed and 25% neither supporting not opposing it
  - 53% of respondents preferred Australia's compulsory preferential voting system over non-compulsory first past the post systems, with 25% of respondents not preferring Australia's system, and 22% of respondents saying that there was no difference.
- There is a lack of trust in major parts of the democratic system. For example, 17% of respondents had a lot of trust in the Federal Parliament, and 52% had a little trust.
- Many people have concerns about politicians.
  - 76% of respondents thought that Australia's state and federal politicians are mostly focused on short-term gains and re-election rather than addressing the long-term challenges facing Australians
  - 49% of respondents thought that most politicians are out of touch with important issues facing ordinary citizens, 42% of respondents that most politicians are in touch with important issues facing ordinary citizens, but have largely failed to address these issues, and 9% of respondents thought that most politicians are in touch with the important issues facing ordinary citizens, and have largely addressed these issues
  - 23% of respondents agreed that Australia's state and federal politicians understood and represented their interests, 51% of respondents disagreed, and 26% of respondents neither agreed nor disagreed.
  - 50% of respondents thought that the major political parties best represent the interests of people like them, and 50% of respondents thought that the major political parties do not best represent them
  - Respondents considered that various issues were relevant to how they voted at federal elections. For example, 95% of respondents thought that a party or candidates having a plan to address Australia's long-term issues was important
- There is a sizeable appetite for change in Australia's political system
  - 13% of respondents thought that Australia's political system is working well, 53% of respondents thought that Australia's political system needs some reform but is fundamentally sound, and 34% of respondents thought that Australia's political system needs fundamental change
  - Women, those aged 35 to 54, Coalition and Minor party/Independent voters and those in serious financial difficulty are more likely to think Australia's political system needs fundamental change
- There is strong support for political donations, public funding, and 'truth in political advertising' reforms
  - 77% of respondents supported real-time disclosure of political donations, 5% of respondents were opposed to real-time disclosure of political donations, and 18% of respondents neither supported nor opposed real-time disclosure of political donations.
  - 71% of respondents supported caps on political donations, 7% of respondents were opposed to caps on political donations, and 22% of respondents neither supported nor opposed caps on political donations.
  - 74% of respondents supported restricting public funding given to political parties from being used for attack/negative advertising, 6% of respondents were opposed, and 20% of respondents neither supported nor opposed this
  - 74% of respondents supported requiring political parties and candidates who receive public funding to produce properly costed policy programs three months prior to an election, 5% of respondents were opposed, and 21% of respondents neither supported nor opposed this
  - 81% of respondents supported 'truth in political advertising' laws, 5% of respondents were opposed, and 14% of respondents neither supported nor opposed this
  - 22% of respondents would be willing to accept more public funding for political parties and candidates if political donations were capped, 55% of respondents were opposed, and 23% of respondents were unsure

- 46% of respondents would be willing to accept more public funding for political parties and candidates if the funding had to be used for policy development and could not be used for attack/negative political advertisements, 32% were opposed, and 22% were unsure.

- There is majority support for increased public participation in democratic decision-making. For example, 67% of respondents supported online surveys of electorates to understand the views of local citizens on key policy issues and increase engagement in-between elections, 7% of respondents were opposed, and 26% of respondents were neither supported not opposed.

Thank you again for the opportunity to contribute to the Committee's Inquiry, and I wish you well in undertaking this important work.

Regards

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